

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-04

ICL USA, Inc.,
COMPLAINANT,

v.

Dependable Highway Express, Inc. and
Mediterranean Shipping Company, (USA) Inc. on behalf of Mediterranean Shipping Company,
S.A.,

RESPONDENTS.

STIPULATION OF DISMISSAL

Complainant ICL USA, Inc. ("ICL" or "Complainant"), and Respondents Dependable Highway Express, Inc. ("DHE"), and Mediterranean Shipping Company, (USA) Inc. on behalf of Mediterranean Shipping Company, S.A. ("MSC") (DHE and MSC are also referred to collectively as "Respondents")¹ hereby stipulate to the dismissal of this action, FMC Docket No. 24-04. This dismissal is *with* prejudice. Pursuant to 46 C.F.R. § 502.72(a)(2), Complainant and Respondents certify that no settlement on the merits was reached.

1. The matter initiated because facts were in dispute regarding certain payments, refunds, and amounts of money being owed among the Parties.
2. MSC invoiced DHE for certain per diem charges related to ICL's containers used for

¹ ICL, DHE and MSC are also collectively referred to herewith as the "Parties".

imports into southern California. Between December 2021 and March 2022 DHE paid the amount of \$142,385 in per diem charges to MSC and MSC received payments in that amount from DHE.

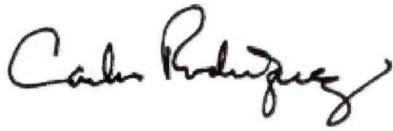
3. ICL obtained waivers of the per diem charges from MSC via email, as provided in Exhibit 2 to the Verified Complaint, to the extent provided below.
4. DHE requested of MSC that the amount of \$142,385 for the ICL related charges, together with other per diem charges paid by DHE to MSC related to other customers of DHE and not related to ICL, be refunded by MSC.
5. On November 10, 2023 MSC issued a check in the amount of \$147,415.00 as a single cash payment to DHE.
6. With check dated November 10, 2023, and deposited by DHE on November 20, 2023, MSC did refund to DHE the amount of \$117,235 in per diem charges related to ICL that had been previously paid by DHE. The balance of the check covered refunds for per diem charges related to other customers of DHE and not related to ICL.
7. Following the filing of the Complaint in this matter, MSC further agreed to refund the additional amount of \$13,795 of ICL per diem charges to DHE.
8. On May 17, 2024 MSC refunded to DHE the additional amount of \$13,795 of the ICL related per diem charges.
9. On June 3, 2024, DHE confirmed receipt of the \$13,795, confirming a total receipt of \$131,030 in ICL related per diem charges initially paid by DHE to MSC and refunded by MSC to DHE.
10. Following this additional refund of \$13,795, there remains an amount of \$11,355 in ICL related per diem charges paid to MSC by DHE that MSC had determined to be valid

charges and will not be waived by MSC.

11. ICL agrees with MSC's assessment that the remaining amount of \$11,355 constitute valid charges which need to be refunded to DHE by ICL, as this amount was not waived by MSC.
12. The amount of \$11,355 represents the remaining amount of per diem charges paid to MSC by DHE related to ICL's containers that has not been refunded to DHE, and that is included within DHE's claim for payment and reimbursement in the civil action filed by DHE against ICL in the United States District Court for the Central District of California, entitled Dependable Highway Express, Inc. v ICL USA, Inc. et al., number 2:23-cv-05484-DDP-E.
13. This stipulation shall have no effect on DHE's rights to pursue its claim against ICL for payment and reimbursement of such amount of \$11,355 in per diem charges paid to MSC involving ICL's containers and accruing, or accrued interest thereon.
14. In view of the stipulations herein relating to refunds paid by MSC to DHE related to the waivers applicable to MSC alleged in the Complaint in the total amount of \$131,030, ICL voluntarily dismisses, *with* prejudice, the Respondents on all counts.
15. ICL voluntarily dismisses its Complaint (Docket No. 24-04), and the Parties hereby agree and stipulate to ICL's voluntary dismissal of ICL's Complaint *with* prejudice.

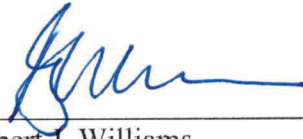
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Respectfully submitted this 2nd day of August 2024.



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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 5th day of August 2024, the foregoing Stipulation of

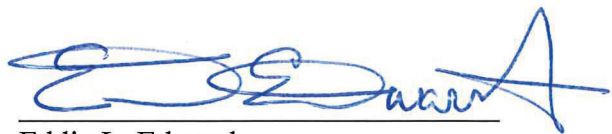
Dismissal was served via electronic mail to:

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FMC Docket 24-04



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